



Notification Waiver Determination

Xylem - TriOS

Acquisition	Xylem Analytics Germany GmbH, a wholly owned subsidiary of Xylem Inc. (together, Xylem), applied for a notification waiver in respect of its proposed acquisition of 100% the shares in TriOS Mess-und Datentechnik GmbH (including its subsidiaries in Australia, Malaysia and New Zealand) (TriOS), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 June 2026

Parties to the Acquisition	The acquirer, Xylem, is a global water technology company headquartered in Indiana, United States. It focuses on the design, manufacture and service of engineered products and solutions across a wide variety of critical applications, primarily in the water sector. Its broad portfolio of products, services and solutions address customer needs across the water cycle from the delivery, treatment, measurement and use of drinking water, to the collection, testing, analysis and treatment of wastewater, and finally the return of water to the environment. The target, TriOS, is a company headquartered in Rastede, Germany, with sales and service operations in Australia, Malaysia and New Zealand. It develops, manufactures and supplies optical measurement and sensor systems, primarily for water monitoring. Its portfolio includes optical sensors, such as photometers, fluorometers, radiometers and electrochemical sensors that measure physical, chemical and biological parameters including nitrate, nitrite, organic carbon compounds, turbidity, oil content and algal activity. In addition, TriOS offers controllers and integrated measurement and system solutions. In Australia, the parties both supply analytical instrumentation for water quality used to measure, monitor and analyse the physical, chemical and biological parameters of water in different applications.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap in the supply of analytical instrumentation for water quality in Australia, and the increase in share of supply arising from the Acquisition would be low b. there are alternative suppliers of analytical instrumentation for water quality in Australia c. TriOS has a small presence in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act